

Mutual Non-Disclosure Agreement and Interim Service Level Agreement

incorporating a Letter of Intent for an Exclusive Mortuary & Cremation Services Relationship

This Agreement is made on the _____ day of _____ 20____ (“Signature Date”)

between

1. **Modern Muse (Pty) Ltd** (Registration No. _____), a private company incorporated in the Republic of South Africa, with its principal place of business at _____ (“the **Company**”); and

2. **Green Pastures Funeral Service** (full registered name and entity type: _____ — Registration No. _____), with its principal place of business at _____ (“**Green Pastures**”),

each a “**Party**” and together the “**Parties**”.

1. Purpose and Structure of this Agreement

1.1 The Parties are in discussions regarding a proposed **exclusive relationship** under which Green Pastures would provide **mortuary services and cremation services** to or for the benefit of the Company (the “**Proposed Relationship**”).

1.2 The Parties wish to (a) record their **intent** to negotiate the Proposed Relationship in good faith, (b) protect **confidential information** exchanged during those discussions and any interim services, and (c) agree a **basic interim service framework** that applies until a full, definitive service level agreement is concluded (the “**Definitive Agreement**”).

1.3 **Binding and non-binding provisions.** The following clauses are **legally binding** on the Parties: clause 3 (Confidentiality), clause 4 (Interim Service Levels, to the extent services are actually rendered), clause 5 (Exclusive Negotiation), clause 6 (Data Protection), clause 7 (Term and Termination) and clause 8 (General). Clause 2 (Statement of Intent) and **all commercial terms of the Proposed Relationship** (including pricing, volumes and final service levels) are **non-binding** statements of current intent only and remain subject to negotiation and to the conclusion of the Definitive Agreement.

2. Statement of Intent (non-binding)

2.1 The Parties record their present intention that, subject to agreement on terms:

(a) Green Pastures would be appointed as the Company’s **exclusive provider** of mortuary services (including collection, transport, storage and preparation of the deceased) and cremation services in _____ (agreed service area, e.g. the Western Cape);

(b) the appointment would be for an initial term of _____ months/years, with pricing, volumes, service standards and review mechanisms to be set out in the Definitive Agreement; and

(c) the Parties will use reasonable endeavours to conclude the Definitive Agreement within **30 (thirty) days** of the Signature Date, or such longer period as they may agree in writing.

2.2 Nothing in this clause 2 obliges either Party to conclude the Definitive Agreement, and no binding exclusive appointment arises until the Definitive Agreement is signed.

3. Confidentiality (binding — mutual NDA)

3.1 “**Confidential Information**” means all information disclosed by either Party (the “**Discloser**”) to the other (the “**Recipient**”) in connection with the Proposed Relationship, whether before or after the Signature Date and in whatever form, including: business plans, strategies, pricing, costs, financial information, customer and supplier details, operational methods, facilities information, know-how, and the existence and content of the Parties’ discussions and of this Agreement.

3.2 Confidential Information **excludes** information which: (a) is or becomes publicly available other than through a breach of this Agreement; (b) was lawfully known to the Recipient before disclosure; (c) is lawfully received from a third party without restriction; (d) is independently developed without use of the Discloser’s Confidential Information; or (e) must be disclosed by law, regulation or court order (in which case the Recipient shall, where lawful, give the Discloser prompt written notice before disclosing).

3.3 The Recipient shall: (a) use Confidential Information **solely** to evaluate, negotiate and perform the Proposed Relationship; (b) keep it confidential and protect it with at least the care it applies to its own confidential information, and no less than reasonable care; (c) disclose it only to its directors, employees, and professional advisers who need to know it for the purpose in clause 3.3(a) and who are bound by confidentiality obligations no less strict than this clause 3; and (d) not copy it except as reasonably required for that purpose.

3.4 On the Discloser’s written request, or on termination of discussions, the Recipient shall return or destroy all Confidential Information (and certify destruction if asked), save for copies required by law or automatic electronic archiving, which remain subject to this clause 3.

3.5 The obligations in this clause 3 commence on the Signature Date and survive for **3 (three) years** after termination of this Agreement, and indefinitely in respect of personal information governed by clause 6.

3.6 Each Party acknowledges that damages may be an inadequate remedy for breach of this clause 3 and that the Discloser may seek interdictory or other urgent relief in addition to any other remedy.

4. Interim Service Levels (binding while interim services are rendered)

4.1 The Parties may agree, in writing (email sufficing), that Green Pastures renders mortuary and/or cremation services to the Company **before** the Definitive Agreement is concluded (“**Interim Services**”). Neither Party is obliged to request or render Interim Services.

4.2 Where Interim Services are rendered, the following baseline standards apply, to be refined in the Definitive Agreement:

#	Service element	Interim standard
4.2.1	Availability for collection requests	24 hours a day, 7 days a week via agreed contact number: _____
4.2.2	Response to a collection request	Acknowledgement within [1] hour; collection of the deceased within _____ hours within the service area

4.2.3	Mortuary storage	Refrigerated storage at Green Pastures' licensed facility at _____, in compliance with all applicable health regulations
4.2.4	Cremation turnaround	Within _____ business days of receipt of all required statutory documentation and authorisations
4.2.5	Documentation	Green Pastures obtains and retains all permits, certificates and registrations required by law (including under the Births and Deaths Registration Act and applicable health regulations) and provides copies to the Company on request
4.2.6	Dignity and care	All services performed with dignity, professionalism and respect for the deceased and the bereaved, and in accordance with good industry practice
4.2.7	Interim pricing	As per Green Pastures' standard rate card dated _____, attached as Annexure A — or as otherwise agreed in writing per engagement
4.2.8	Incident reporting	Any incident affecting a deceased person, a family, or regulatory compliance reported to the Company within [24] hours

4.3 Green Pastures warrants that it holds, and will maintain for the duration of this Agreement, all licences, registrations, permits and insurance required by law to render the Interim Services, and shall provide proof to the Company on request.

4.4 Interim Services are rendered on the terms of this Agreement only; no exclusivity, minimum-volume or long-term commitment arises from the rendering of Interim Services.

5. Exclusive Negotiation (binding)

5.1 For **30 (thirty) days** from the Signature Date (the "**Exclusivity Period**"), and unless extended by written agreement:

(a) the Company shall not solicit or enter into negotiations with any other provider for the exclusive supply of mortuary and cremation services in the intended service area; and

(b) Green Pastures shall not solicit or enter into negotiations with any competitor of the Company for an arrangement that would prevent or materially impair the Proposed Relationship.

5.2 Either Party may terminate the Exclusivity Period on **14 (fourteen) days'** written notice if, in its reasonable opinion, the negotiations are no longer likely to result in the Definitive Agreement.

6. Data Protection (binding)

6.1 Each Party shall comply with the **Protection of Personal Information Act, 4 of 2013 (POPIA)** in respect of any personal information (including that of deceased persons' next of kin and special personal information) processed in connection with this Agreement.

6.2 Each Party shall: (a) process personal information only as necessary for the purposes of this Agreement; (b) implement appropriate, reasonable technical and organisational security measures; (c) notify the other Party

without undue delay of any security compromise affecting shared personal information; and (d) not retain personal information longer than lawfully required.

7. Term and Termination

7.1 This Agreement commences on the Signature Date and continues until the earlier of: (a) the signature of the Definitive Agreement (which will supersede it); or (b) termination by either Party on **30 (thirty) days'** written notice; or (c) termination by written agreement.

7.2 Termination does not affect: accrued rights; fees due for Interim Services already rendered; or clauses 3 (Confidentiality), 6 (Data Protection) and 8 (General), which survive termination.

8. General

8.1 **No partnership or agency.** Nothing in this Agreement creates a partnership, joint venture, employment or agency relationship between the Parties.

8.2 **Costs.** Each Party bears its own costs of negotiating this Agreement and the Definitive Agreement.

8.3 **Whole agreement; variation.** This Agreement is the whole agreement between the Parties on its subject matter and may only be varied in writing signed by both Parties.

8.4 **No cession.** Neither Party may cede, assign or delegate its rights or obligations without the other's prior written consent.

8.5 **Notices.** Notices must be in writing to the addresses on the first page (each Party's *domicilium citandi et executandi*) or the email addresses below, and are deemed received on delivery (or, for email, on transmission absent a bounce): Company: **johannes@getluckygolfclub.com;** Green Pastures:

8.6 **Governing law and jurisdiction.** This Agreement is governed by the laws of the Republic of South Africa. The Parties consent to the jurisdiction of the Western Cape Division of the High Court, Cape Town.

8.7 **Counterparts and electronic signature.** This Agreement may be signed in counterparts, including by electronic signature in accordance with the Electronic Communications and Transactions Act, 25 of 2002, each of which together constitutes one agreement.

Signature

Signed at _____ on this _____ day of _____ 20____

For and on behalf of Modern Muse (Pty) Ltd (the Company)

Signature: _____

Name: Johannes Le Roux

Capacity (duly authorised): Director

Signed at _____ on this _____ day of _____ 20____

For and on behalf of Green Pastures Funeral Service

Signature: _____

Name: _____

Capacity (duly authorised): _____

Annexure A — Interim Rate Card

(Agreed interim rate for Interim Services rendered under clause 4.)

Service	Rate (ZAR)
Single all-inclusive interim fee per deceased, covering: collection & transport of the deceased (within a 60 km radius), mortuary storage, preparation of the deceased, cremation (incl. standard container) and return of ashes	R14 500,00 (all-inclusive, incl. VAT)
Additional doctor's / medical practitioner's fees	Excluded — charged at cost
Collection & transport beyond a 60 km radius	To be agreed in writing per engagement

Prepared for negotiation purposes; parties should obtain independent legal advice. Open (blank-line) fields to be completed in ink and initialled by both Parties on or before counter-signature.